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MUTUAL NON-DISCLOSURE AGREEMENT

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Mutual NDA

Contract reference : CR-2026-033  
Document type : Mutual NDA  
Status : signed  
Date received : 2026-05-20  
Date signed : 2026-05-27

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PARTIES

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- (1) Northgate Systems Ltd
  - (2) Oakhampton Council
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RECITALS

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(A) Confidentiality for pre-tender market engagement with local authority.  
(B) The commercial particulars are summarised below and, together with the stand  
ard  
terms and any negotiated amendments, form the whole agreement.

NOW IT IS AGREED as follows:

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SUMMARY OF TERMS

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Council's paper, includes FOIA carve-out.

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TERMS AND CONDITIONS

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1. DEFINITIONS

"Confidential Information" means any information disclosed by or on behalf of  
one  
party (the "Disclosing Party") to the other (the "Receiving Party"), whether  
before  
or after the date of this Agreement, that is marked as confidential or that a  
reasonable person would understand to be confidential given its nature or the  
circumstances of disclosure, including business plans, financial information,  
customer and supplier lists, technical data, source code, know-how and the te  
rms of  
this Agreement.  
"Purpose" means the purpose described in Recital (A). "Representatives" means  
a  
party's officers, employees, professional advisers and sub-contractors who ne

ed to  
know the Confidential Information for the Purpose.

## 2. PURPOSE AND SCOPE

The Disclosing Party may disclose Confidential Information to the Receiving Party solely for the Purpose. This Agreement imposes no obligation on either party to disclose any information or to proceed with any transaction.

## 3. CONFIDENTIALITY OBLIGATIONS

The Receiving Party shall: (a) keep the Confidential Information secret and confidential; (b) use it only for the Purpose; (c) apply security measures no less rigorous than those it applies to its own confidential information and in any event no less than a reasonable standard of care; and (d) not copy or reduce to writing any part of the Confidential Information except as necessary for the Purpose.

## 4. PERMITTED DISCLOSURES

The Receiving Party may disclose Confidential Information to its Representatives on a need-to-know basis provided that it informs them of the confidential nature of the information and procures that they observe obligations equivalent to those in this Agreement. The Receiving Party is liable for any act or omission of its Representatives that would breach this Agreement.

## 5. EXCLUSIONS

The obligations in this Agreement do not apply to information that: (a) is or becomes public other than through breach of this Agreement; (b) was lawfully in the Receiving Party's possession before disclosure; (c) is lawfully obtained from a third party without restriction; or (d) is independently developed without use of or reference to the Confidential Information.

## 6. COMPELLED DISCLOSURE

If the Receiving Party is required by law, regulation or an order of a court or regulator of competent jurisdiction to disclose any Confidential Information, it may do so, but shall (where lawful and practicable) give the Disclosing Party prior written notice and reasonable assistance to seek protective measures, and shall disclose only the minimum required.

## 7. RETURN OR DESTRUCTION

On the Disclosing Party's written request, or on expiry of this Agreement, the Receiving Party shall promptly return or securely destroy all Confidential Information and copies, save for one copy retained for compliance purposes or copies held in routine electronic back-ups, which remain subject to confidentiality until deleted.

#### 8. NO LICENCE; NO WARRANTY

All Confidential Information remains the property of the Disclosing Party. No thing in this Agreement grants any licence under any intellectual property right save the limited right to use the Confidential Information for the Purpose. The Confidential Information is provided "as is" without warranty as to its accuracy or completeness.

#### 9. NO PARTNERSHIP OR AGENCY

Nothing in this Agreement creates a partnership, joint venture or agency between the parties or authorises either party to bind the other.

#### 10. TERM AND SURVIVAL

This Agreement takes effect on the date of last signature and continues for the term stated in the Summary of Terms. The confidentiality obligations survive expiry or termination for the confidentiality tail stated in the Summary of Terms.

#### 11. REMEDIES

The parties acknowledge that damages may not be an adequate remedy for breach and that the Disclosing Party is entitled to seek injunctive or other equitable relief in addition to any other remedy available at law.

#### 12. GENERAL

This Agreement constitutes the entire agreement between the parties on its subject matter and supersedes all prior discussions. No variation is effective unless in writing and signed by both parties. Neither party may assign this Agreement without the other's prior written consent. A person who is not a party has no rights under the Contracts (Rights of Third Parties) Act 1999. No failure or delay in exercising a right is a waiver of it.

#### 13. GOVERNING LAW AND JURISDICTION

This Agreement and any non-contractual obligations arising out of it are governed by the law stated in the Summary of Terms, and the parties submit to the exclusive jurisdiction of its courts.

### GENERAL PROVISIONS

#### A. INTERPRETATION

Clause headings do not affect interpretation. References to a statute or statutory provision are to it as amended, extended or re-enacted from time to time and include subordinate legislation made under it. Words in the singular include the plural and

vice versa, and "including" and "in particular" are illustrative and do not limit the words that precede them.

#### B. ENTIRE AGREEMENT

This agreement, together with the documents it incorporates and the Schedule of Negotiated Amendments, constitutes the entire agreement between the parties on its subject matter and supersedes all prior drafts, arrangements and understandings, whether written or oral. Each party acknowledges that it has not relied on any statement or representation not expressly set out in this agreement, save that nothing limits liability for fraud or fraudulent misrepresentation.

#### C. VARIATION AND WAIVER

No variation of this agreement is effective unless it is in writing and signed by an authorised representative of each party. No failure or delay by a party to exercise any right or remedy is a waiver of that or any other right or remedy, and no single or partial exercise prevents any further exercise.

#### D. ASSIGNMENT

Neither party may assign, transfer, charge, sub-contract or deal in any other manner with any of its rights or obligations under this agreement without the prior written consent of the other (such consent not to be unreasonably withheld or delayed), save that either party may assign to an affiliate or to a successor in connection with a bona fide reorganisation or sale of the relevant business.

#### E. SEVERANCE

If any provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable; if such modification is not possible, the relevant provision is deemed deleted. Any modification to or deletion of a provision does not affect the validity and enforceability of the rest of this agreement.

#### F. NOTICES

Any notice given under this agreement shall be in writing, addressed to the relevant party at its registered office or principal place of business (or such other address as notified), and delivered by hand, pre-paid first-class post or email to the address notified for that purpose. A notice is deemed received: if delivered by hand, on signature; if by post, at 9.00am on the second business day after posting; and if by email, on transmission, subject to confirmation of delivery.

#### G. FORCE MAJEURE

Neither party is in breach of this agreement or otherwise liable for any failure or delay in performance (other than a payment obligation) caused by an event beyond its reasonable control. The affected party shall notify the other and use reasonable endeavours to mitigate the effect. If the event continues for more than sixty (60) days, either party may terminate on written notice.

#### H. THIRD PARTY RIGHTS

Except as expressly stated in this agreement, a person who is not a party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement, and the consent of any third party is not required to vary or rescind it.

#### I. DISPUTE RESOLUTION AND ESCALATION

The parties shall attempt in good faith to resolve any dispute by escalation to their respective senior representatives within fourteen (14) days of written notice of the dispute. If the dispute is not resolved within a further thirty (30) days, either party may pursue its rights and remedies, without prejudice to either party's right to seek urgent injunctive relief at any time.

#### J. COUNTERPARTS AND ELECTRONIC SIGNATURE

This agreement may be executed in any number of counterparts, each of which when executed constitutes an original and all of which together constitute one and the same instrument. Execution by electronic signature is valid and binding.

#### SCHEDULE OF NEGOTIATED AMENDMENTS (TRACKED CHANGES)

This Schedule records each redline agreed against the standard form above, the counterparty position it replaced, and the policy or legislation relied on. It forms part of this agreement and prevails over the standard wording it varies.

#### AMENDMENT 1 [2026-05-23] - AMENDED

Clause affected: FOIA Disclosure

(+) Negotiated amendment:

+ Accepted FOIA disclosure carve-out with prior-notice obligation.

Governing basis: Freedom of Information Act 2000, s.41 & s.43

#### EXECUTION

Executed by the parties on the dates set out below. This agreement may be signed in counterpart and by electronic signature.

Signed for and on behalf of Northgate Systems Ltd:

Signature: \_\_\_\_\_  
Name: \_\_\_\_\_  
Title: \_\_\_\_\_  
Date: 2026-05-27

Signed for and on behalf of Oakhampton Council:

Signature: \_\_\_\_\_  
Name: \_\_\_\_\_  
Title: \_\_\_\_\_  
Date: 2026-05-27

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SIMULATED PLACEHOLDER CONTRACT – Northgate Systems Ltd corpus.

Generated from the contract register; not a real legal document.

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